

23. 9:01 AM CASE NUMBER: C25-01233

CASE NAME: SAYED MASSOUD VS. TOYOTA MOTOR SALES, U.S.A., INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION BY DEF TOYOTA MOTOR SALES, U.S.A., INC.**

FILED BY: MASSOUD, SAYED

TENTATIVE RULING:

Withdrawn by Notice of Withdrawal filed May 5, 2026. The matter is DROPPED from calendar.

Law & Motion

Add On

24. 9:00 AM CASE NUMBER: MSC19-02043

CASE NAME: GARAVENTA VS AZARI

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO TO MEHRZAD AZARI**

FILED BY: GARAVENTA, SILVIO

TENTATIVE RULING:

Before the Court are two separate motions brought by plaintiff Silvio Garaventa, Jr. ("Plaintiff"), a motion to compel further responses to discovery requests and a motion addressing reopening discovery deadlines and related relief.

Background

On January 27, 2026, Plaintiff filed a Motion to Reopen Discovery and/or, in the alternative, Allow Plaintiff to Serve a Tardy Expert Witness Disclosure (the "Motion to Reopen Discovery"). The Motion to Reopen Discovery was originally set for hearing on July 23, 2026. However, the motion was advanced, upon ex parte application, for hearing on May 7, 2026. See Order entered February 3, 2026. Following reassignment of this case, the matter was reset for hearing on May 4, 2026. The Court, *sua sponte*, continued the matter from May 4, 2026 to May 11, 2026.

Plaintiff filed a Request for Judicial Notice in connection with the Motion to Reopen Discovery (the "RJN"). The RJN is DENIED as unnecessary. The RJN relates to an ex parte application in this case on January 12, 2026 and the Court's January 14, 2026 Order (the "January 14th Order"). Both pleadings appear of record and the Court need not take judicial notice of matters in the same case before the Court. The Court has considered its file, including those pleadings.

By the Court's January 14th Order, the prior February 23, 2026 trial date was vacated. The order also declined to extend any discovery related deadlines. See January 14th Order, p.2.

The Court notes that it recently set the matter for a long-cause court trial on November 16, 2026. See Order entered April 22, 2026 (the "April 22nd Order").

On January 22, 2026, Plaintiff filed a motion to compel further responses to discovery requests ("Motion to Compel Further Responses") propounded upon defendant Mehrzad Azari ("Defendant").

The discovery requests at issue in the Motion to Compel Further Responses (collectively, the “Discovery Requests”) are Plaintiff’s Requests for Production of Documents, Set Two (the “RPDs”). The Motion to Compel Further Responses was set for hearing on May 7, 2026. Following reassignment of this case, the matter was reset for hearing on May 4, 2026. The Court, *sua sponte*, continued the matter from May 4, 2026 to May 11, 2026.

Both motions are opposed. On April 21, 2025, Defendant filed opposition papers to both motions, including a number of opposition declarations:

1. Declaration of David E. Harris (“Harris Opposition Declaration re MTC”);
2. Declaration of Emily M. Dennis (“Dennis Opposition Declaration re MTC”);
3. Declaration of Mehrzad Azari (“Dennis Opposition Declaration re MTC”); and
4. Declaration of Emily M. Dennis in opposition to Motion to Reopen Discovery (“Dennis Opposition Declaration re Motion to Reopen Discovery”).

Defendant also filed an opposition Separate Statement (the “Opposition Separate Statement”).

Analysis

1. Timeliness of Motion to Compel Further Responses

Plaintiff’s Opposition contends that the Motion to Compel Further Responses are time barred because the time has come and gone for the hearing of discovery related motions. See Code Civ. Proc. § 2024.020(a) (“Except as otherwise provided in this chapter, any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, **and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action.**”) (emphasis added).

The date initially set for the trial of the action was February 23, 2026. This was set by the Court on June 27, 2025. See Minute Order dated July 2, 2025 (regarding Case Management Conference held June 27, 2025). The 15th day before that date was February 8, 2025, a Sunday. Accordingly, the deadline rolled over to the next court date, Monday, February 9, 2026. See CJER, *California Judges Benchbook: Civil Proceedings—Discovery* (2025) (“CJER Civ. Pro.—Discovery”), § 8.6.

This Motion to Compel Further Responses was not filed until January 22, 2026, less than three weeks before that deadline. Of course, the motion was given a hearing date months out, as is typical for a discovery motion.

The companion Motion to Reopen Discovery was brought a few days later. A subsequent *ex parte* advanced that motion for hearing in May 2026, as noted above. While that motion could, at least in theory, address the time bar for the hearing of the Motion to Compel Further Responses, Plaintiff did not otherwise seek to advance the hearing specifically on Motion to Compel Further Responses in the days between its filing and February 9, 2026.

In any event, the ability to hear the Motion to Compel Further Responses turns on the Court’s ruling on the Motion to Reopen Discovery. As set forth below, the Court denies the request to generally reopen discovery and all discovery related deadlines, only permitting certain Further Permitted Discovery. The Further Permitted Discovery does not include written discovery such as document inspection demands and production. Therefore, the Motion to Compel Further Responses is time barred and the Court need not reach its merits.

The Court, does however, make the observation that there is significant information in the record that

there may be other avenues to seek some or all of the relevant documentation sought by Plaintiff in advance of the new trial date.

2. Sanctions Regarding Motion to Compel Further Responses

When properly requested, monetary sanctions are mandatory against the party losing on a motion to compel further responses to discovery requests unless the court finds “substantial justification” for that party’s position or other circumstances making the sanction “unjust.” Code Civ. Proc. § 2031.310(h); see Weil & Brown, et al., *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) § 8:1900 *et seq.*

In light of the good faith arguments in favor of a possible reopening of discovery, as discussed below, the Court finds that there was substantial justification for the moving party’s effort to prosecute the Motion to Compel Further Responses. The Court does not award sanctions against the non-prevailing moving party.

3. Motion to Reopen Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Once the discovery cutoff date has run and discovery has closed, the only means provided in the Civil Discovery Act for reopening discovery is motion for leave of court. See Code Civ. Proc. § 2024.050(a) (“On motion of any party, the court may grant leave to complete discovery proceedings, or to have a motion concerning discovery heard, closer to the initial trial date, or to reopen discovery after a new trial date has been set.”); see also CJER Civ. Pro.—Discovery, § 8.5.

The Court has discretion whether to grant or deny such motion and “shall take into consideration any matter relevant to the leave requested,” including the factors enumerated in Code of Civil Procedure section 2024.050. See Code Civ. Proc. § 2024.050(b) (“(1) The necessity and the reasons for the discovery[;] (2) The diligence or lack of diligence of the party seeking the discovery or the hearing of a discovery motion, and the reasons that the discovery was not completed or that the discovery motion was not heard earlier[;] (3) Any likelihood that permitting the discovery or hearing the discovery motion will prevent the case from going to trial on the date set, or otherwise interfere with the trial calendar, or result in prejudice to any other party [; and] (4) The length of time that has elapsed between any date previously set, and the date presently set, for the trial of the action.”)

Sanctions are also mandatory against a non-prevailing party on such a motion. See Code Civ. Proc. § 2024.050(c) (“[t]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to extend or to reopen discovery, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”).

The Court has considered both sides’ lengthy recitations of the procedural history of this case and the proceedings specifically as relates to the vacating of the prior February 23, 2026 trial date. The Court has considered the timing and circumstances of the ongoing discovery matters and both parties’

views on the discovery proceedings to date.

Assertions about what is “customary” with respect to the continuation of trial-related cutoffs are of marginal persuasive force regarding whether the Court should generally grant leave to reopen discovery. See Declaration of Richard T. Bowles filed January 27, 2026, ¶12 *et seq.* The Court, however, has considered the described “mistaken assumption” as relates, specifically to the failure to timely serve an expert disclosure statement.

The Court grants leave to reopen discovery and complete the following discovery proceedings (the “**Further Permitted Discovery**”):

1. The oral depositions of all parties not previously taken and completed;
2. The disclosure and depositions of any expert witnesses;
3. The oral depositions of any other third party if the parties **mutually agree** that the deposition of the particular third party is necessary and appropriate to facilitate an orderly trial presentation; and
4. Any records subpoenas previously served on or before the discovery cutoff date based on the prior February 23, 2026 trial date.

In all other respects, the Court denies the Motion to Reopen Discovery and declines to exercise its discretion to reopen discovery or extend any discovery cutoff or discovery related hearing deadlines.

The Further Permitted Discovery does not include other forms of written discovery such as interrogatories, document production requests or third party records subpoenas served after the discovery cutoff date based on the prior February 23, 2026 trial date. Nor does leave to complete oral depositions include further production of documents pursuant to any prior production requests contained in any notice of deposition or otherwise. The parties are, of course, free and indeed encouraged to voluntarily produce any further documents not previously produced to facilitate orderly deposition(s) and/or trial presentation.

The parties are admonished to redouble their efforts to meet and confer in good faith to accomplish scheduling and completion of further depositions, including experts, well in advance of the current trial date and otherwise in accordance with this order.

For good cause shown, the Court hereby orders that the date of any expert exchange pursuant to any prior demand shall be Friday, July 10, 2026.

4. Sanctions Regarding Motion to Reopen Discovery

The Court has granted partial relief on the Motion to Reopen Discovery and to the extent either party was unsuccessful in making or opposing the motion, the Court finds that there was substantial justification for each party’s position. The Court does not award sanctions against any party.

Disposition

The Court further finds and orders as follows:

1. The Motion to Compel Further Response is **DENIED**.
2. The Motion to Reopen Discovery is **GRANTED IN PART** and **DENIED IN PART**, as further set forth above.

3. The Court shall issue the order after hearing.

25. 9:00 AM CASE NUMBER: MSC19-02043

CASE NAME: GARAVENTA VS AZARI

***HEARING ON MOTION IN RE: REOPEN DISCOVERY AND/OR IN THE ALTERNATIVE, ALLOW
PLAINTIFF TO SERVE TARDY EXPERT WITNESS DISCLOSURE**

FILED BY: GARAVENTA, SILVIO

TENTATIVE RULING:

See LINE 25 above.